IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION
CIVIL APPEAL NO. 4582 OF 2021
(Arising out of SLP (C) No. 12903 of 2019)
M/S. BHARAT INFRASTRUCTURE LIMITED ... APPELLANT(S)
VERSUS
STATE OF MAHARASHTRA & ANR. ... RESPONDENT(S)
JUDGMENT
DR. D.Y. CHANDRACHUD, J.
1. Leave granted. This appeal arises from a final judgment and order dated 14 March 2019 passed by the Division Bench of the High Court of Ju
2. The factual background matrix reveals that on 12 January 2016, a tender notice was published for the construction of a four-lane elevated hig
3. On 10 November 2017, the respondents issued a termination notice alleging that the appellant had achieved merely 14.8% progress. The app
4. The primary questions of law framed for consideration before this Court are:
(i) Whether the High Court, exercising extraordinary writ jurisdiction under Article 226 of the Constitution of India, ought to entertain a writ petition
(ii) Whether the contractual termination without adherence to the mandatory 30-day cure period stipulated under Clause 14.2 constitutes arbitrar
5. Mr. K.V. Vishwanathan, learned Senior Counsel appearing for the appellant, vehemently contended that even in realm of public contracts, the
6. Per contra, Mr. Tushar Mehta, learned Solicitor General appearing for the respondent Corporation, urged that the dispute involves complex er
7. Having considered the rival submissions and examined the record, we are of the considered opinion that while judicial review in contractual m
8. In our considered view, the ratio decidendi is that public authorities discharging contractual functions are bound by procedural fairness under A
9. Consequently, the Civil Appeal is allowed. The judgment of the High Court dated 14 March 2019 is set aside. The order of termination dated 1